

Opinion of the Court

Nor was it only the prospect of African-Americans voting that concerned the delegates. Just a week before the convention, the U. S. Senate passed a resolution calling for an investigation into whether Louisiana was systemically excluding African-Americans from juries.² Seeking to avoid unwanted national attention, and aware that this Court would strike down any policy of overt discrimination against African-American jurors as a violation of the Fourteenth Amendment,³ the delegates sought to undermine African-American participation on juries in another way. With a careful eye on racial demographics, the convention delegates sculpted a “facially race-neutral” rule permitting 10-to-2 verdicts in order “to ensure that African-American juror service would be meaningless.”⁴

Adopted in the 1930s, Oregon’s rule permitting nonunanimous verdicts can be similarly traced to the rise of the Ku Klux Klan and efforts to dilute “the influence of racial, ethnic, and religious minorities on Oregon juries.”⁵ In fact, no one before us contests any of this; courts in both Louisiana and Oregon have frankly acknowledged that race was a motivating factor in the adoption of their States’ respective non-unanimity rules.⁶

We took this case to decide whether the Sixth Amendment right to a jury trial—as incorporated against the States by way of the Fourteenth Amendment—requires a unanimous verdict to convict a defendant of a serious offense.⁷ Louisiana insists that this Court has never definitively passed on

²See 31 Cong. Rec. 1019 (1898).

³*Strauder v. West Virginia*, 100 U. S. 303, 310 (1880).

⁴*State v. Maxie*, No. 13–CR–72522 (La. 11th Jud. Dist., Oct. 11, 2018), App. 56–57; see also Frampton, *The Jim Crow Jury*, 71 Vand. L. Rev. 1593 (2018).

⁵*State v. Williams*, No. 15–CR–58698 (C. C. Ore., Dec. 15, 2016), App. 104.

⁶*Maxie*, App. 82; *Williams*, App. 104.

⁷Under existing precedent and consistent with a common law tradition not at issue here, a defendant may be tried for certain “petty offenses” without a jury. *Cheff v. Schnackenberg*, 384 U. S. 373, 379 (1966).